



DEPARTMENT OF THE NAVY
NAVSUP FLEET LOGISTICS CENTER SAN DIEGO
REGIONAL CONTRACTS OFFICE
3985 CUMMINGS ROAD
SAN DIEGO CA 92136-4000

IN REPLY REFER TO

J&A Number 26-250-0001

SOLE SOURCE JUSTIFICATION AND APPROVAL FOR ACQUISITION OF A
COMMERCIAL ITEM UNDER FAR 13.5

1. CONTRACTING ACTIVITY:

The contracting activity is NAVSUP Fleet Logistics Center, San Diego (NAVSUP FLCSD), Regional Contracts Department. The requiring activity is Commander, Navy Region Southwest (CNRSW) N6 at Naval Air Station (NAS), Fallon, NV.

2. DESCRIPTION OF THE ACTION BEING APPROVED:

Approval is requested to issue a Firm Fixed Price contract to acquire telecommunication services through a sole source acquisition of commercial services under the procedures of FAR 13.5, from C.C. Communications, DBA Churchill County Telephone (CC Communications), Fallon, NV. This Justification and Approval (J&A) shall be effective from the date of approval through the end of the contract term. The required period of performance is one-year base period effective 02 April 2026 - 01 April 2027 and two one-year option periods.

FAR 13.5 Simplified Procedures for Certain Commercial Items: This procurement is in accordance with FAR 13.5 Simplified Procedures for Certain Commercial Items and specifically FAR 13.501 Special Documentation Requirements, where acquisitions conducted under Simplified Acquisition Procedures are exempt from the requirements of FAR Part 6, but still require a justification using the format of FAR 6.303-2. This J&A is required per FAR 13.501(a)(1)(ii) and FAR subpart 13.5 procedures have been used for this acquisition in accordance with 10 U.S.C. § 2304(g)(1)(B). See also 41 U.S.C. § 1901 and FAR 13.500(a).

Commercial Item Determination: Per DFARS 212.102(a)(i)(C), this acquisition requires higher-level approval because it is for a commercial service valued over \$1 million. The written Commercial Determination (CD) concludes that the requirement for integrated telecommunications meets this definition. It has been prepared for approval at one level above the contracting officer and will be included in the contract file prior to award.

3. DESCRIPTION OF SUPPLIES/SERVICES:

This is a follow on requirement for telecommunication services to include the use of the Base Telephone Systems (BTS). The agency requires the continuation of commercially available integrated voice and data telecommunications services, equipment, and maintenance for the base backbone cable distribution facilities at NAS Fallon. The services must support the entire installation, operating as a single, transparent system. The BTS also interconnects with the Defense Switched Network (DSN) and the 'Networx Universal' to provide a comprehensive set of telecommunication network services to meet Government requirements for National Security

and Emergency Preparedness (NSEP) and will provide migration to an Integrated Services Digital Network (ISDN). FY26 Operation & Maintenance, Navy appropriation will be utilized for the base period and two (2) option periods will be funded with appropriate fiscal year appropriation. The total estimated value of the proposed procurement is [REDACTED] including option years.

4. STATUTORY AUTHORITY PERMITTING SOLE SOURCE ACQUISITION OF A COMMERCIAL ITEM IN ACCORDANCE WITH FAR 13.5

In accordance with 10 U.S.C. § 2304(g)(1)(b) and FAR 13.106-1(b)(2), a contracting officer may conduct a “sole source acquisition” as defined in FAR 2.101 using simplified acquisition procedures for certain commercial items in FAR 13.5, provided such sole source acquisition for the commercial item meets the requirements of FAR 13.501. FAR 13.501(a)(1)(i) permits a sole source acquisition for a commercial item under FAR 13.5 only if the need to do so is justified in writing and approved at the levels specified in FAR 13.501(a)(2). Because the sole source acquisition of the commercial item being considered here, i.e., telecommunication services, exceeds \$900,000 but not \$20 million, this J&A must be approved by the advocate for competition for the procuring activity, designated pursuant to FAR 6.501, or an official described in FAR 6.304(a)(3) or (a)(4). Per FAR 13.501(a)(1)(ii) the format for this J&A must follow the format content set forth in FAR 6.303-2, modified to reflect that the procedures in FAR subpart 13.5 were used in accordance with 10 U.S.C. § 2304(g)(1)(b). The underlying justification for the sole source acquisition of this commercial item is that there is only one responsible source for this requirement.

5. RATIONALE JUSTIFYING SOLE SOURCE ACQUISITION OF COMMERCIAL ITEM IN ACCORDANCE WITH FAR 13.5:

NAS Fallon is responsible for the operation and maintenance of the BTS. The communication equipment currently installed at NAS Fallon is approximately 70 miles from the nearest metropolitan area. Currently, CC Communications is the only source that is able to provide telecommunication services to this remotely located installation.

The current system is a comprehensive BTS that is entirely owned, operated, and maintained by the proposed vendor, CC Communications. This is not Government-owned equipment. The existing infrastructure includes, but is not limited to:

- Switching Equipment: All central office (CO) and remote switching elements that manage call routing and features across the installation.

- Backbone Distribution Plant: The entire physical network of both fiber optic and copper cabling that serves every facility on the installation. CC Communications owns all fiber optic cable that terminates at NAS Fallon.

- Integrated System Features: The network operates as a single, transparent system with full feature transparency (e.g., call forwarding, voicemail, multi-line hunt groups) across all elements.

- Critical Endpoints: The system provides service to mission-essential and life-safety endpoints, including all fire alarm monitoring panels and all emergency telephones within base elevators.

CC Communications also retains proprietary rights to the existing system, as well as to any upgrade or enhancements of the CC Communications-owned equipment, software, distribution cable, etc.. They are the only company able to provide the services and the hardware and software maintenance (including any necessary upgrades and equipment) for the BTS. In addition, CC Communications is the local exchange carrier that provides dial tone for the BTS.

An award made to any vendor other than CC Communications would require the vendor to install their own independent infrastructure. This would involve immense and cost-prohibitive construction and engineering efforts to lay new fiber and install new equipment to extend from the nearest metropolitan area to and throughout the entire remote installation. Alternatively, a new vendor would be forced to sublet the fiber connection from the incumbent, CC Communications, which would not constitute a truly competitive environment and would not be cost-effective. Procuring this service from another vendor would lead to a partial ownership scenario of an integrated system. This would create significant liability issues for the Government regarding responsibility for repairs, troubleshooting, delayed services, and managing unanticipated costs between two separate vendors on one integrated system. As such, it is not feasible to competitively procure the services described above from any source other than CC Communications.

Additionally, utilizing the established infrastructure of CC Communications ensures there will be no interruption in service. This is vital as the telecommunication services are critical for mission-essential functions, including but not limited to, air traffic control, emergency services (fire alarm panels, elevator emergency lines), and command and control (C2) functions. A transition to a new provider would introduce significant risk of service disruption.

Furthermore, the telecommunication services described in the Performance Work Statement (PWS), to include critical hardware and software maintenance, are required to continue to ensure supporting the Naval Air Station and its tenants with telecommunication services (24) hours per day, (7) days per week.

For all the reasons described above, CC Communications is the only source capable of providing these services.

6. DESCRIPTION OF EFFORTS MADE TO ENSURE OFFERS ARE SOLICITED FROM AS MANY POTENTIAL SOURCES AS IS PRACTICABLE, INCLUDING WHETHER A NOTICE WAS PUBLICIZED AS REQUIRED BY FAR SUBPART 5.2:

In using simplified acquisition procedures for sole source acquisition of a commercial item under FAR 13.5, efforts must be made to promote competition to the maximum extent practicable. 10 U.S.C. § 2304(g)(3) and FAR 13.104. Market research must be used in order to determine whether commercial items are available that can meet the requesting activity's requirements. FAR 12.101(a).

Market Research: As part of the market research, a Sources Sought notice was published on SAM.gov to identify potential sources on 16 December 2025 with a closing date of 07 January 2026. The notice yielded responses from two vendors, [REDACTED]. These responses and their associated capability statements were submitted for technical review.

The technical subject matter expert, Ms. Shanna Schroeder, determined that neither vendor could be considered a viable source. This determination was based on the fact that neither respondent demonstrated the required access to or rights to use the existing proprietary telecommunications infrastructure owned by the incumbent.

Synopsized Notice under FAR 5.2: In accordance with FAR 5.201 and 5.203, a synopsis of this proposed contract action will be published on SAM.gov. The notice will state the Government's intent to award a contract on a sole-source basis to CC Communications and will provide any interested parties with an opportunity to identify their interest and capability to respond to the requirement.

7. DETERMINATION OF FAIR AND REASONABLE COST:

The Contracting Officer will determine the proposed price is fair and reasonable by performing a price analysis. In accordance with FAR 15.403-1, which exempts commercial acquisitions from the requirement for certified cost or pricing data, the contractor will be required to submit information other than cost or pricing data to support its proposal. The Government's analysis will primarily consist of comparing the proposed price with the historical prices paid for the same or similar services.

8. ACTIONS BEING TAKEN TO REMOVE BARRIERS TO COMPETITION:

For the reason set forth in Paragraph 5, there are currently no additional actions NAVSUP FLCSD can take to increase competition for this requirement. The barrier to competition is the incumbent's proprietary ownership of the entire physical infrastructure and the intellectual property required to operate it. The Government will continue to monitor the market for any technological or structural changes, such as the potential for the sale of the infrastructure or deregulation, that might make future competition feasible upon the conclusion of this contract's period of performance.

9. CONTRACTING ACTIVITY POINT OF CONTACT:

The NAVSUP FLCSD points of contact are: Contract Specialist, Elisa Allison, 619-556-5824 and Contracting Officer, Russell McCullough, 619-556-7312.

CERTIFICATIONS AND APPROVAL

TECHNICAL/REQUIREMENTS CERTIFICATION

I certify that the facts and representations under my cognizance which are included in this Justification and its supporting acquisition planning documents, except as noted herein, are complete and accurate to the best of my knowledge and belief.

Technical / Requirements Cognizance:

SCHROEDER.SHA
NNA.MICHELLE.11
Digitally signed by
SCHROEDER.SHANNA.MICHEL
LE
Date: 2026.02.04 09:28:06
-08'00'

Signature

Schroeder, Shanna

Name (Printed)

775-426-2988

Phone No.

2/4/2026

Date

Legal Sufficiency Review:

MCCABE.ANDRE
W.J.
Digitally signed by
MCCABE.ANDREW.J.
Date: 2026.02.24 09:46:31
-08'00'

Signature

Andrew McCabe

Name (Printed)

619-556-5313

Phone No.

02/24/2026

Date

Contracting Officer's Certification (required):

I certify that the foregoing justification is accurate and complete to the best of my knowledge and belief.

MCCULLOUGH.R
USSELLA.
Digitally signed by
MCCULLOUGH.RUSSELLA.
Date: 2026.02.24 09:58:25
-08'00'

Signature

Russell McCullough

Name (Printed)

619-556-7312

Phone No.

02/24/2026

Date

Competition Advocate (required):

Upon the basis of the above justification, I hereby approve, as the competition advocate, the solicitation of the proposed procurement described herein pursuant to the authority under FAR 13.501(a)(2)(ii).

SIMPKINS-
VARGANOV.LATRICE
NICOLE
Digitally signed by
SIMPKINS-
VARGANOV.LATRICE
NICOLE
Date: 2026.02.24 20:29:52
-08'00'

Signature

Latrice Simpkins-Varganov

Name (Printed)

619-556-5311

Phone No.

2/24/2026

Date